

PASSED

11th Legislature



Tribal Law 11-002

To create a system relating to regulatory controls over tribal real property, clarifying the principal roles of the Executive and Legislative departments, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

October, 1993

AN ACT

Be it enacted by the Chickasaw Tribal Legislature assembled, that this Act shall be cited as the "Chickasaw Nation Real Property Act of 1994."

SEC. 2. The Chickasaw Tribal Legislature finds that:

(a) A need exists to provide a system for the Chickasaw Tribal Legislature to utilize in making decisions pertaining to real property owned by, held or acquired for the Chickasaw Nation.

SEC. 3. The basis for authority of this Act is Article VI, Section 1, Article VII, Section 4 and Article VII, Section 7 of the Constitution of the Chickasaw Nation. The Chickasaw Tribal Legislature, with the adoption of this Act, hereby:

(a) Enacts rules and regulations pertaining to the acquisition, leasing, disposition and management of tribal real property, subject to the governing provisions of federal law.

SEC. 4. For the purpose of this Act:

(a) "The Chickasaw Nation" shall mean the government instituted in

the Constitution of the Chickasaw Nation, or all Chickasaw Indians by blood whose names appear on the final rolls of the Chickasaw Nation approved pursuant to Section 2 of the Act of April 26, 1906, and their lineal descendants, or it shall mean the actual physical nation itself, depending upon reference;

(b) "Chickasaw Tribal Legislature," or "legislature," shall mean that body of not more than 13 members, as created by Articles V, VI, VII, VIII and IX of the Constitution of the Chickasaw Nation;

(c) "Governor" shall mean the chief executive officer of the Chickasaw Nation, as created by Articles X and XI of the Constitution, or whenever proper to so interpret, it may also mean the lieutenant governor, when acting in behalf of the governor in accordance with Article X, Section 2 and in Article XI, Section 5 of the Constitution;

(d) "Acquisition" shall mean the the act of becoming owner of certain real property in the name of the Chickasaw Nation;

(e) "Leasing" shall mean that act of entering into a contract by which one owning property grants to another the right to possess, use and enjoy that property for a specified period of time in exchange for periodic payment of a stipulated price;

(f) "Disposition" shall mean the act of transferring real property to the care or possession of another or, when practical to so apply the definition, it shall mean the parting with, alienation of, or giving up of real property;

(g) "Management" shall mean the control by direction or regulation as it pertains to the policies involved in real property owned by the Chickasaw Nation;

(h) "Real property" shall mean land, and generally whatever is erected or growing upon or affixed to land, except that for the purposes of sale,

industrial growing crops and things attached to or forming part of the land, which are agreed to be severed before sale or under the contract of sale, shall be treated as goods and shall be governed by the processes which normally govern the sale of such goods;

(i) "Constitution" means that document which formally established the Chickasaw Nation and its government, as ratified by the eligible registered voters of the Chickasaw Nation on August 27, 1983, and which was approved by the secretary of the U.S. Department of the Interior on July 15, 1983;

(j) "Chairperson" shall mean that officer of the Chickasaw Tribal Legislature as identified at Article VII, Section 1 of the Constitution;

(l) "Secretary" shall mean that officer of the Chickasaw Tribal Legislature as identified at Article VII, Section 1 of the Constitution;

(m) "Chairman" shall mean the officer heading up any of the committees of the legislature who is duly elected, appointed or otherwise chosen to fill that position.

SEC. 5. (a) Real property may be acquired in the name of the Chickasaw Nation, leased from the Chickasaw Nation, leased in the name of the Chickasaw Nation, or disposed of by the Chickasaw Nation only with the direct approval and authorization of the legislature as evidenced by the adoption of a resolution which grants the authority to take that action.

(b) Such acquisitions, leaseings and/or dispositions shall be subject to gubernatorial veto as contained in Article XI, Section 3 of the Constitution, and such transactions, in order to be complete, shall require the signature of the governor on behalf of the Chickasaw Nation.

SEC 6. (a) The Executive Department shall exercise its authority and responsibilities relating to the letting of contracts, the approval and acceptance of bids, the approval of all new construction building designs,

the naming of buildings, structures or appurtenances relating to real property owned in the name of the Chickasaw Nation, and any other aspect relating to the daily operations and care of such tribal real property, in accordance with and in pursuit of the policies set out in this Act.

(b) All new construction of buildings to be located on tribal real property shall be submitted for approval to the legislature. Such submissions shall include, as a minimum, explanation of each planned structure, its purpose, any revenues to be generated, source of payment associated with costs of construction, and details regarding the structure itself. The legislature shall act upon the request for construction, subject to the concurrence of the governor.

SEC. 7. (a) The governor shall exercise his authority in engaging in negotiations for the purchase of real property. Such negotiations may be engaged in by the governor either in person or through a third party or parties, selected by the governor, or by a combination of both third parties and the governor.

(b) Once those negotiations are completed to the satisfaction of the governor, he shall notify the legislature of the completion of those negotiations, including the purchase price and the terms of the purchase. The governor shall also include in such notification pertinent facts relating to the real property, including any proposed or suggested plans for such real property once it is acquired.

(c) The legislature shall, in its next regularly scheduled session, or in special session called by the governor for that purpose, take action regarding the purchase as negotiated by the governor.

(d) Once the legislature has authorized the purchase of real property and that purchase has been completed by the governor, the governor shall request that the Bureau of Indian Affairs place that real property into

trust for the Chickasaw Nation by the United States of America, unless the legislature has specifically exempted that real property from being placed into trust status.

SEC. 8. (a) The governor shall exercise authority in engaging in negotiations for the leasing of real property, either in the name of the Chickasaw Nation or in the name of a program, department or function which is an essential and internal part or portion of the services provided or operated, whether by contract, by mandate or by grant authority, by the Executive Department.

(1) In leases which are strictly to be utilized by one of those programs or services and which are not made in the name of the Chickasaw Nation but rather in the name of that particular program or service or in the name of the Executive Department, the governor shall negotiate and enter into such lease agreements on the basis of his authority as chief executive officer, as contained in Article XI, Section 1 of the Constitution.

(2) Such leases shall be effected when funds to meet expenses of such leases are provided by the program through its funding sources. In such instances, programs or departments may negotiate their own leases subject to the approval of the governor.

(b) Such leases as are determined to be necessary for the operation of tribal businesses shall also be negotiated and entered into by the governor as chief executive officer; provided, that such leases are made in the name of that particular business or in the name of the Executive Department.

(1) Leased property to be utilized by a tribal business shall have been selected by the appropriate authority for that business, with all necessary plans and provisions having been submitted to the governor,

with such plans and provisions including, as a minimum, the intended use of that real property, the method of payment for the terms of the lease regarding that real property, and the term of the lease requested to meet the needs of the business.

(c) The governor shall exercise his authority in negotiating leases to be entered into in the name of the Chickasaw Nation. Such negotiations may be engaged in by the governor either in person or through a third party or parties, selected by the governor, or by a combination of both third parties and the governor.

(d) Once those negotiations are successfully completed by the governor, he shall notify the legislature of the completion of those negotiations, including the lease price and the terms of the lease. The governor shall also include in such notification pertinent facts relating to the property, including any proposed or suggested plans for such real property once the lease is finalized.

(e) The legislature shall, in its next regularly scheduled session, or in special session called by the governor for that purpose, take action regarding the lease as negotiated by the governor.

SEC. 9. (a) At any time that it is determined that it is necessary or beneficial to the Chickasaw Nation to dispose of real property which is owned in the name of the Chickasaw Nation, the legislature shall make known that determination by the adoption of a resolution so indicating.

(1) Such resolution shall include reasons for the findings which result in that determination and shall request the governor to begin the process of disposing of that real property, either by sale, assign or by other method; provided, that said method or methods shall be indicated in the resolution.

(2) Said resolution shall empower the governor to enter into

negotiations for the purpose of disposing of that real property with such negotiated selling price being not less than the appraised value of that real property; provided, however, that the legislature shall reserve the right to approve the sale of such real property should the best selling price negotiated by the governor be less than the appraised value of that real property.

(b) If any property is determined to be disposed of and that property is held in trust for the Chickasaw Nation by the United States of America, the governor is empowered with pursuing whatever means are necessary to have that trust status removed prior to the sale of that land, and in accordance with any federal laws, rules or regulations pertaining to the sale or other disposition of such trust lands.

SEC. 10. Normal, routine maintenance and upkeep of all real property shall be done in accordance with the daily and/or special requirements of such property to provide for its protection and security. Such maintenance and upkeep shall be provided in accordance with established procedure by the department or agency of the Executive Department which is charged with such duties, with costs for such services provided for through program costs or other resources for such expenditures; provided, however, that any costs requiring use of tribal funds that are not otherwise budgeted must be approved by the legislature prior to incurring any such costs.

(b) Capital improvements to tribal real property shall be contained in a Capital Improvements Plan, devised by the governor and submitted to the legislature on no less frequent basis than annually, with updates as special need or circumstances dictate. The plan shall also include a proposed and projected time frame for completion of any work involved, as well as justification for that work. The legislature shall act upon a resolution approving or disapproving that Capital Improvements Plan and

any subsequent additions or changes to it. An estimate of cost shall be provided for each improvement and shall be identified as to source of funding. Capital improvements funded from tribal resources shall be included in a budget, as devised by the governor.

SEC. 11. Any proceeds, including funds, goods, services or other benefits, from any tribal real property realized from the Chickasaw Nation's ownership of that real property, shall be budgeted in the Tribal General Fund for use during the normal budgeting cycle and in accordance with the budgeting procedures; provided, however, that any trust funds realized from the Chickasaw Nation's ownership of any real property are to be budgeted in accordance with the regulations and requirements of the U.S. Department of the Interior, and/or with any applicable federal laws.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on December 17, 1993, by a vote of 12 ayes, 0 nays and 0 abstentions.

Lisa Shephard

Chairperson Protempore
Chickasaw Tribal Legislature

Robert Walton

Secretary Protempore
Chickasaw Tribal Legislature

Concur:

Bill Anoatubby
Bill Anoatubby, Governor
The Chickasaw Nation

Date:

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